

24VECV05184 24VECV05184

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 24VECV05184 Hearing Date: August 6, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JENNIFER FRENCH,

Plaintiff,

vs.

JOHN MAHONEY and DOES 1-10,

Defendant.

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CASE NO.: 24VECV05184

ORDER

DENYING DEFENDANT'S MOTION FOR TERMINATING SANCTIONS

I.

BACKGROUND

Plaintiff Jennifer

French ("Plaintiff") filed a Complaint against Defendant John Mahoney ("Defendant") alleging Defendant breached his oral contract that all assets the parties obtained during their relationship would be equally owned by the parties. (See Compl., ¶ 18.)

Defendant now moves for terminating sanctions based on Plaintiff's failure to comply with this Court's prior orders compelling discovery responses and imposing discovery sanctions.

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II.

PROCEDURAL

HISTORY

On October

21, 2024, Plaintiff filed a Complaint alleging: (1) Breach of Oral Contract;

(2) Promissory Estoppel; and (3) Quantum Meruit.

On August 12,
2025, the Court granted Defendant's Motion to Compel Responses to his Request
for Production of Documents.

On April 7,
2026, the Court granted Defendant's Motions to Compel Plaintiff's Responses to
Requests for Production and Special Interrogatories and Motion to Deem Admitted
Requests for Admission.

On June 8,
2026, Defendant filed the instant Motion for Terminating Sanctions.

On July 10,
2026, the Court continued the hearing on this Motion, ordering (1) the action stayed
only as to Plaintiff until she complied with all outstanding discovery orders; (2)
the Final Status Conference scheduled for July 17, 2026, and Trial scheduled
for July 27, 2026 vacated; and ordering (3) Plaintiff to comply with all prior
discovery orders issued in this case by no later than 5 p.m. on July 24, 2026.

On July 24,
2026, Plaintiff filed an Opposition.

As of August
3, 2026, no reply has been filed.

III.

LEGAL STANDARD

The "court,
after notice to any affected party, person, or attorney, and after an
opportunity for hearing, may impose" monetary, issue, evidence, or terminating
sanctions "against anyone engaging in conduct that is a misuse of the discovery
process[.]" (Code Civ. Proc. § 2023.030(a)-(d).) [1] Failing
to respond or submit to an authorized method of discovery and disobeying a
court order to provide discovery are misuses of the discovery process. (See
Code Civ. Proc. § 2023.010(d), (g).)

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IV.

ANALYSIS

Defendant

requests the Court dismiss Plaintiff's action with prejudice based on Plaintiffs' failure to comply with the Court's April 7, 2026, Order. The Court's April 7, 2026, Order granted Defendant's motions to compel Plaintiff's responses to Defendant's Special Interrogatories (set two), Request for Production of Documents (set two), and granted Defendant's motion to deem Requests for Admission (set two) admitted. Defendant argues Plaintiff's failure to appear at the April 7, 2026, hearing, obey the April 7, 2026, discovery order, and pay sanctions warrant dismissal of Plaintiff's Complaint. (See Mot. at 3:15-20.)

In

opposition, Plaintiff argues she provided verified responses and documents to Defendant on July 24, 2026, per the Court's July 10, 2026, Order. (See Opp. at 6:1-3; Declaration of Jay W. Smith filed July 24, 2026, ¶ 10 ("Smith Decl"), Exs. 1-4.) Plaintiff's counsel attests his failure to respond to Defendant's discovery was due to an inability to download the discovery requests. (See Smith Decl., ¶¶ 4.) Plaintiff's counsel attests he contacted Defendant's counsel for another copy of the discovery but did not receive a response until after the motions to compel were filed. (See id., ¶5.) Plaintiff's counsel also attests the oppositions to the motions to compel and instant motion were misfiled due to internal office error. (See id., ¶¶ 7-8.) Plaintiff's counsel attests he also mis-calendared the initial hearing on the instant Motion and has otherwise been diligent in prosecuting this action. (See id., ¶ 11.) Plaintiff requests the Court deny this Motion and reschedule this matter for trial. (See Mot. at 6:7-8.)

The Court

will deny the Motion. On July 10, 2026, the Court continued the hearing on this Motion, ordering, in relevant part, (1) the action stayed only as to Plaintiff until she complied with all outstanding discovery orders and (2) ordering Plaintiff to comply with all prior discovery orders issued in this case by no later than 5 p.m. on July 24, 2026. (See July 10, 2026, Minute Order.) The Court finds terminating sanctions are not warranted as Plaintiff has now complied with the Court's July 10, 2026, Order. The Court notes Plaintiff's opposition does not state whether she has paid the April 7, 2026, discovery sanctions to

Defendant's counsel. (See April 7, 2026 Minute Order.) However, no reply was filed responding to this issue. Accordingly, the Court finds Plaintiff has fully complied with the April 7, 2026, Order and terminating sanctions are not warranted.

Thus, the
Court DENIES Defendant's Motion for Terminating Sanctions.

V.

CONCLUSION

Based on the
foregoing, the Court DENIES Defendant's Motion for Terminating Sanctions.

IT IS SO ORDERED.

DATED: August 6, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references are to California
codes unless stated otherwise.